

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

Index No.:

-----X  
LEROY FLUDD and BRYCE JONES,

Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. MACKENSO NELSON  
(Shield No. 16956) and P.O. FRANCES URENA  
(Shield No. 19481) and SGT. BARONETTE TREV  
OF THE 79TH CMD ON ARREST #K12642676,Defendants.  
-----X**SUMMONS**Plaintiffs designate  
KINGS County as the  
place of trial.The basis of venue  
is where the Tort  
aroseThe Tort Arose in:  
KINGS COUNTY, NEW  
YORK**To the above named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA. NEW YORK  
JULY 29, 2013

KAREEM R. VESSUP

THE LAW OFFICE OF KAREEM R. VESSUP  
ESQ.

Attorneys for Plaintiffs

LEROY FLUDD and BRYCE JONES

89-31 161<sup>st</sup> Street, Suite 705

Jamaica, New York 11432

Our File No. 12-1305

TO: Corporation Counsel of  
The City of New York  
100 Church Street  
New York, NY 10007

P.O. Mackenso Nelson

1 Police Plaza, Room 1100  
New York, NY 10038

P.O. Frances Urena  
1 Police Plaza, Room 1100  
New York, NY 10038

Sgt. Baronette Trev  
1 Police Plaza, Room 1100  
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

-----X

LEROI FLUDD and BRYCE JONES,

Index No.:

Plaintiffs,

-against-

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, P.O. MACKENSO NELSON  
(Shield No. 16956) and P.O. FRANCES URENA  
(Shield No. 19481) and SGT. BARONETTE TREV  
OF THE 79TH CMD ON ARREST #K12642676,

Defendants.

-----X

Plaintiffs **LEROI FLUDD and BRYCE JONES**, by their attorney  
THE LAW OFFICE OF KAREEM R. VESSUP ESQ., complaining of the  
Defendants, respectfully allege upon information and belief, as  
follows:

1. The torts alleged herein arose in the County of Kings,  
City and State of New York.

2. At all times herein mentioned, Plaintiff **LEROI FLUDD**  
was, and still is, a resident of the Orange County, State of New  
York.

3. At all times herein mentioned, Plaintiff **BRYCE JONES**  
was, and still is, a resident of the County of Kings, City and  
State of New York.

4. At all times herein mentioned, Defendant **THE CITY OF  
NEW YORK** was, and still is, a municipal corporation duly organized  
and existing by virtue of the laws of the State of New York.

5. Upon information and belief, at all times mentioned,  
Defendants **P.O. MACKENSO NELSON (Shield No. 16956) and P.O.**

**FRANCES URENA (Shield No. 19481) and SGT. BARONETTE TREV OF THE 79TH CMD ON ARREST #K12642676** were and are police officers and sergeants of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

6. On or about July 28, 2012 and within ninety (90) days after the claims herein arose, Plaintiffs each served separate Notices of Claim, in writing and sworn to on each of their behalfs, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notices of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claims arose, the items of damages and injuries sustained so far as was then determinable.

7. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

8. The Plaintiffs have complied with the request of the municipal Defendant for oral examinations pursuant to Section 50h of the General Municipal Law in that separate 50h hearings were held for each Plaintiff on January 9, 2013.

9. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street,

Brooklyn, NY Defendants **P.O. MACKENSO NELSON** (Shield No. 16956) and **P.O. FRANCES URENA** (Shield No. 19481) and **SGT. BARONETTE TREV OF THE 79TH CMD ON ARREST #K12642676** arrested Plaintiffs **LEROZY FLUDD** and **BRYCE JONES**.

10. Thereafter Plaintiffs were brought to the NYPD 79<sup>th</sup> Precinct followed by Central Booking and were charged and prosecuted in Kings County Criminal Court. **LEROY FLUDD** was prosecuted under Docket #2012KN043834 for various charges that he was innocent of. **BRYCE JONES** was prosecuted under Docket #2012KN043854 for various crimes that he was innocent of.

11. Said prosecutions continued until on or about June 2012 when the cases ended.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF LEROY FLUDD**

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "11" with full force and effect as though set forth at length herein.

13. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY the defendants jointly and severally in their capacity as police officers and sergeants, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **LEROY FLUDD**, restrained him and interfered with his liberty and took him into custody without authority to the 79<sup>th</sup> Precinct in Kings County and thereafter to

central booking.

14. The Plaintiff **LEROY FLUDD** was held in custody for more than 24 hours before he was arraigned.

15. The Defendants intentionally confined the Plaintiff **LEROY FLUDD** without his consent and the confinement was not otherwise privileged by law and at all times Plaintiff was aware of his confinement.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF BRYCE JONES**

16. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "15" with full force and effect as though set forth at length herein.

17. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY the defendants jointly and severally in their capacity as police officers and sergeants, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **BRYCE JONES**, restrained him and interfered with his liberty and took him into custody without authority to the 79<sup>th</sup> Precinct in Kings County and thereafter to central booking.

18. The Plaintiff **BRYCE JONES** was held in custody for more than 24 hours before he was arraigned.

19. The Defendants intentionally confined the Plaintiff **BRYCE JONES** without his consent and the confinement was not

otherwise privileged by law and at all times Plaintiff was aware of his confinement.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF LEROY FLUDD**

20. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "19" with full force and effect as though set forth at length herein.

21. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY the defendants jointly and severally in their capacity as police officers, placed Plaintiff **LEROY FLUDD** in imminent fear of a harmful or offensive physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the plaintiff.

22. All of the above actions placed Plaintiff **LEROY FLUDD** in imminent fear of physical contact and at no time did the Plaintiff consent to the unlawful actions of the Defendants.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF BRYCE JONES**

23. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "22" with full force and effect as though set forth at length herein.

24. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street,

Brooklyn, NY the defendants jointly and severally in their capacity as police officers, placed Plaintiff **BRYCE JONES** in imminent fear of a harmful or offensive physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the plaintiff.

25. All of the above actions placed Plaintiff **BRYCE JONES** in imminent fear of physical contact and at no time did the Plaintiff consent to the unlawful actions of the Defendants.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF LEROY FLUDD**

26. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "25" with full force and effect as though set forth at length herein.

27. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY the defendants jointly and severally in their capacity as police officers, did commit a battery upon Plaintiff **LEROY FLUDD** in that they subjected him to a harmful or offensive touching by grabbing, manipulating, handcuffing, pushing, shoving and manhandling Plaintiff, among other harmful and/or offensive contact.

28. Defendants did not have legal cause to touch Plaintiff **LEROY FLUDD** in the manner in which they did. Plaintiff did not consent to the aforementioned contact nor was it privileged by



law.

29. Said contact caused Plaintiff **LEROY FLUDD** damage and injury.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF BRYCE JONES**

30. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "29" with full force and effect as though set forth at length herein.

31. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY the defendants jointly and severally in their capacity as police officers, did commit a battery upon Plaintiff **BRYCE JONES** in that they subjected him to a harmful or offensive touching by grabbing, manipulating, handcuffing, pushing, shoving and manhandling Plaintiff, among other harmful and/or offensive contact.

32. Defendants did not have legal cause to touch Plaintiff **BRYCE JONES** in the manner in which they did. Plaintiff did not consent to the aforementioned contact nor was it privileged by law.

33. Said contact caused Plaintiff **BRYCE JONES** damage and injury.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF LEROY FLUDD**

34. Plaintiff repeats, reiterates and re-alleges all of the

allegations contained in paragraphs "1" through "33" with full force and effect as though set forth at length herein.

35. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY and continuing thereafter Plaintiff was arrested. From that time until the end of the criminal prosecution on or about June 2012, Defendants **P.O. MACKENSO NELSON (Shield No. 16956)** and **P.O. FRANCES URENA (Shield No. 19481)** and **SGT. BARONETTE TREV OF THE 79TH CMD ON ARREST #K12642676** jointly and severally in their capacity as police officers deliberately and maliciously prosecuted Plaintiff **LEROY FLUDD**, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Kings County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

36. The Defendants **P.O. MACKENSO NELSON (Shield No. 16956)** and **P.O. FRANCES URENA (Shield No. 19481)** and **SGT. BARONETTE TREV OF THE 79TH CMD ON ARREST #K12642676**, failed to take reasonable steps to stop the prosecution of Plaintiff **LEROY FLUDD** and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.

37. The commencement of these criminal proceedings under Docket No. 2012KN0434834 was malicious, began in malice and

without probable cause, so that the proceedings could succeed by the Defendants.

38. As a result of the malicious prosecution, Plaintiff LEROY FLUDD was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. Plaintiff **LEROY FLUDD** was otherwise damaged and made multiple court appearances to defend his liberty as a result of the unjust prosecution.

**AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF BRYCE JONES**

39. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "38" with full force and effect as though set forth at length herein.

40. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY and continuing thereafter Plaintiff was arrested. From that time until the end of the criminal prosecution on or about June 2012, Defendants **P.O. MACKENSO NELSON (Shield No. 16956)** and **P.O. FRANCES URENA (Shield No. 19481)** and **SGT. BARONETTE TREV OF THE 79TH CMD ON ARREST #K12642676** jointly and severally in their capacity as police officers deliberately and maliciously prosecuted Plaintiff **BRYCE JONES**, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Kings County, for the purpose of falsely accusing the

plaintiff of violations of the criminal laws of the State of New York.

41. The Defendants **P.O. MACKENSO NELSON (Shield No. 16956) and P.O. FRANCES URENA (Shield No. 19481) and SGT. BARONETTE TREV OF THE 79TH CMD ON ARREST #K12642676**, failed to take reasonable steps to stop the prosecution of Plaintiff **BRYCE JONES** and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff.

42. The commencement of these criminal proceedings under Docket No. 2012KN0434854 was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

43. As a result of the malicious prosecution, Plaintiff **BRYCE JONES** was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. Plaintiff **BRYCE JONES** was otherwise damaged and made multiple court appearances to defend his liberty as a result of the unjust prosecution.

**AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF LEROY FLUDD AND BRYCE JONES**

44. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "43" with full force and effect as though set forth at length herein.

45. Defendants **P.O. MACKENSO NELSON (Shield No. 16956)** and **P.O. FRANCES URENA (Shield No. 19481)** and **SGT. BARONETTE TREV OF THE 79TH CMD ON ARREST #K12642676** were at all times relevant, duly appointed and acting officers of the New York City Police Department.

46. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.

47. Plaintiff **LEROY FLUDD** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

48. Plaintiff **BRYCE JONES** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

49. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY the Defendants, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **LEROY FLUDD** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

50. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY the Defendants, jointly and severally did place Plaintiff **LEROY FLUDD** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

51. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY, the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **LEROY FLUDD**, restrained him and interfered with his liberty and then took him into custody to the 79th Precinct in Kings County and there charged him with the crimes on Docket No. 2012KN043834. The Plaintiff **LEROY FLUDD** was thereafter held in custody for more than 24 hours until he was arraigned. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

52. That beginning on or about May 1, 2012 and continuing until the end of the aforementioned criminal prosecution in June

2012 the Defendants, armed police, while effectuating the seizure of the Plaintiff **LEROY FLUDD**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff **LEROY FLUDD** was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so and without a reasonable suspicion of probable cause. Plaintiff was kept in custody by defendants for more than 24 hours until he was arraigned.

53. The above actions of the Defendants resulted in the Plaintiff **LEROY FLUDD** being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution.

54. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

55. The direct and proximate results of the Defendants' acts are that the plaintiff **LEROY FLUDD** was forced to endure pain

and suffering, all to her detriment. She has suffered severe and permanent injuries of a psychological nature.

56. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY the Defendants, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **BRYCE JONES** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

57. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY the Defendants, jointly and severally did place Plaintiff **BRYCE JONES** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

58. That on or about May 1, 2012 at approximately 2:57pm within an area of a park located nearest to 168 Macon Street, Brooklyn, NY, the Defendants, jointly and severally without any



warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **BRYCE JONES**, restrained him and interfered with his liberty and then took him into custody to the 79th Precinct in Kings County and there charged him with the crimes on Docket No. 2012KN043834. The Plaintiff **BRYCE JONES** was thereafter held in custody for more than 24 hours until he was arraigned. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

59. That beginning on or about May 1, 2012 and continuing until the end of the aforementioned criminal prosecution in June 2012 the Defendants, armed police, while effectuating the seizure of the Plaintiff **BRYCE JONES**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff **LEROY FLUDD** was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so and without a reasonable suspicion of probable cause. Plaintiff was kept in custody by defendants for more than 24 hours until he was arraigned.

60. The above actions of the Defendants resulted in the Plaintiff **BRYCE JONES** being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution.

61. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

62. The direct and proximate results of the Defendants' acts are that the plaintiff **BRYCE JONES** was forced to endure pain and suffering, all to her detriment. She has suffered severe and permanent injuries of a psychological nature.

**AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF LEROY FLUDD AND  
BRYCE JONES**

63. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "62" with full force and effect as though set forth at length herein.

64. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as Plaintiffs **LEROY FLUDD** and **BRYCE JONES** here, have not committed a crime and have

not resisted arrest, that its police officers should only make an arrest based on probable cause

65. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiffs (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of **THE CITY OF NEW YORK** are not to arrest individuals such as the Plaintiffs here where probable cause is lacking.

66. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, that Probable cause must be present before individuals such as Plaintiffs herein can be arrested.

67. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused that police officers to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiffs, commit assaults/batteries upon them under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

68. That as a result of these failures of **THE CITY OF NEW YORK** Plaintiffs **LEROY FLUDD** and **BRYCE JONES** were damaged and injured.

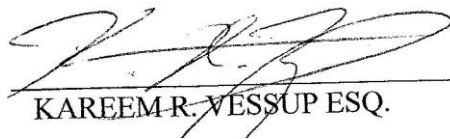
**AS AND FOR AN ELEVENTH CAUSE OF ACTION ON BEHALF OF LEROY FLUDD  
AND BRYCE JONES**

69. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "68" as if set forth at length herein.

70. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals.

71. That as a result of the negligence of **THE CITY OF NEW YORK** Plaintiffs **LEROY FLUDD** and **BRYCE JONES** were damaged and injured.

**WHEREFORE**, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.

  
KAREEM R. VESSUP ESQ.

### **VERIFICATION**

Kareem R. Vessup, affirms under penalty of perjury:

That affirmant is the attorney for the plaintiffs LEROY FLUDD and BRYCE JONES in the action within; that affirmant has read the foregoing:

### **SUMMONS AND COMPLAINT**

and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes it to be true and the reason that this verification is not made by plaintiffs instead of affirmant is that the plaintiffs are not presently in the county where the attorney for the plaintiffs has his office.

Affirmant further says that the source of affirmant's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from investigations made on behalf of said plaintiffs.

DATED: JAMAICA, NEW YORK  
JULY 29, 2013

  
KAREEM R. VESSUP ESQ.